

Akash Joshi v. State of U.P. — tenant connection relegated to clause 4.4

High Court of Judicature at Allahabad · Division Bench · 13 August 2018 · WRIT - C No. 26903 of 2018 · **Writ disposed; petitioner directed to apply under clause 4.4.**

HEADNOTE

A tenant's writ seeking mandamus to connect electricity at Noida premises was disposed of without a merits grant. The Division Bench held that grievances must be ventilated before the appropriate forum under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005, and that if such an application is filed the concerned authority shall act expeditiously.

FACTUAL SUMMARY

Akash Joshi filed a writ of mandamus against the State of U.P. and electricity authorities seeking an electricity connection at B-63, Sector-83, Noida, where M/S Keep in Touch Clothing Pvt. Ltd. was the tenant. The petition (Writ-C No. 26903 of 2018) was listed before a Division Bench on 8 August 2018 and adjourned to 13 August 2018. On that date counsel for the petitioner and Sri Chandan Agarwal for the Electricity Department were heard and the record was perused.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new-connection-forum

HOLDING

A person seeking electricity connection, including a tenant, must ventilate the claim before the appropriate forum under clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005; the High Court will not issue mandamus for connection in the first instance. If an application under clause 4.4 is filed, the concerned authority shall take action expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER AS TENANT/OCCUPIER WAS ENTITLED TO A CONNECTION UNDER CLAUSE 4.4, INCLUDING ANY OCCUPANCY PROOF, INDEMNITY BOND, OR OWNER-CONSENT CONDITIONS.

The Court named clause 4.4 as the forum and directed expedition if an application is filed; it did not decide entitlement or the clause 4.4 conditions. ¶ 1